

CV-25-012482 KOURY, ANITA vs FORD MOTOR COMPANY – Defendant’s Motion for Judgment on the Pleadings as to Plaintiffs’ First Amended Complaint – CONTINUED to August 4, 2026 at 8:30 am in Department 22.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: The motion for judgment on the pleadings is procedurally defective. It fails to comply with Code of Civil Procedure § 439, which requires that parties meet and confer “in person, by telephone, or by video conference” before filing a motion for judgment on the pleadings. Here, the effort to meet and confer was insufficient. The only attempt to comply with Code of Civil Procedure § 439 was the delivery of a written communication on May 14, 2026, sent via email to which Plaintiff did not respond. (Declaration of Jeck Dizon, ¶¶ 2, 4.) A communication sent by email is insufficient. The Legislature’s specification of the authorized methods for meeting and conferring reflects its belief that more personal forms of communication—beyond written exchanges—are better suited to resolving disputes informally, thereby reducing the burden on both the courts and the parties. Accordingly, this matter is CONTINUED to August 4, 2026 at 8:30 am in Department 22. The parties are ordered to meet and confer by one of the methods set forth in Code of Civil Procedure § 439. Moving Party to file and serve a declaration no later than July 21, 2026, describing the efforts to meet and confer and any narrowing of the issues.

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